Topic 9 — Judiciary

Covers syllabus (click to expand)

Supreme Court & High Courts: Supreme Court | High Court | Independence of Judiciary | Appointment of Judges | Collegium System | Judges Cases (First, Second, Third, NJAC/Fourth) | Transfer of Judges | Removal / Impeachment of Judges | Jurisdiction of Supreme Court (Original, Writ, Appellate, Advisory, Review) | Special Leave Petition (Art. 136) | Advisory Jurisdiction (Art. 143) | Jurisdiction of High Court | Court of Record | Arts. 124–147 & 214–231 | Art. 71 (President/VP election) | Art. 262 (water disputes) | 42nd (42वां) / 43rd / 44th (44वां संशोधन) (judiciary) | Allahabad (इलाहाबाद) HC + Lucknow (लखनऊ) Bench **Review, PIL & doctrine:** PIL | Judicial Review | Judicial Activism | Judicial Restraint | Judicial Decisions | Women Judges | Curative Petition (क्यूरेटिव) | Review Petition **Subordinate judiciary & alternate forums:** Subordinate Courts (233–237) | District Courts | Tribunals (Part XIVA (भाग XIVA), 323A/323B) | CAT / SAT | Gram Nyayalaya | Lok Adalat (लोक अदालत) | Fast Track Courts | Contempt of Court | ADR

Sources baked in: Laxmikanth (SC / HC / Subordinate / Tribunals), Constitution Parts V–VI & XIVA, UPPCS Prelims PYQs 2018–2025, UP Special (Allahabad HC) **Weight:** ★★★ — Art. **124**; resign to **President**; **65 / 62**; Collegium 1993+1998; NJAC **99th** struck **2015**; **131 / 71 / 262**; **136**; **143** not binding; **226 > 32**; PIL = **Bhagwati** + 2025 A/R; Tribunals = **Part XIVA not XI**; *Sampath Kumar* substitute → *L. Chandra Kumar* supplement; Fathima **TN not Kerala**; **233** vs **235**; **AIJS 312** not yet; PLA ≠ Lok Adalat; Gram Nyayalaya ≠ Evidence Act; contempt **s.15 AG / s.20 1 year**; FTC ≠ ADR **Last verified:** September 2026 — Ghatnachakra Extra Drill (Supreme Court + High Courts); SC Extra Drill added **Current Affairs:** SC **34** (2019); **25** HCs; Fathima Beevi died **2023**; Mediation Act **2023**

Current Affairs

- **2019:** SC strength **34** (CJI + 33).
- **2019:** AP & Telangana High Courts **split** (1 Jan) — number of HCs = **25**.
- **2015:** NJAC struck down 4:1; Collegium restored.
- **2013:** Manipur, Meghalaya (मेघालय), Tripura HCs — newest trio before 2019 split.
- **2023:Fathima Beevi (फातिमा)** died; Mediation Act.
- **2025:** PIL A/R on rule of law + access to justice.

Integrated vs independent — the frame

India's judiciary is **both** integrated (one hierarchy) **and** independent (separate from the other organs) — those are **not** the same claim.

- **Integrated:one** hierarchy: district/sessions → High Court → Supreme Court. SC is the **apex for the Union and the States**. Canadian flavour.

- **Independent:** separate from the executive/legislature (Arts. **124–147, 214–231, 50**). Not the same thing as “integrated”.
- **USA contrast:** the USA runs a **dual** system — federal courts apply federal law, and state courts apply state law.
- The **US Supreme Court** is **not** the regular apex court for state-court appeals.
- India has **no** such dual split; its judiciary is fully integrated.
- **Part / Articles:** SC: **Part V, Ch. IV, Arts. 124–147**. HC: **Part VI, Ch. V, Arts. 214–231**. Subordinate: **233–237**. Tribunals: **Part XIVA (323A–323B)**.
- **Art. 50:** DPSP (राज्य के नीति निदेशक तत्व) — separate the judiciary from the executive in the **public services of the State**.

Predecessor - The **Federal Court of India** was set up on **1 October 1937**, under the **Government of India Act, 1935**. - Its first Chief Justice was Sir **Maurice Gwyer**. - Appeals from the Federal Court still went to the **Privy Council** in London. - The **Abolition of Privy Council Jurisdiction Act, 1949** ended these residual appeals. - The **Supreme Court of India** was inaugurated on **28 January 1950**. - Its first CJI was **H.J. Kania**. - Its original strength was the **CJI plus 7 judges**, totalling **8**.

> **Logic:** “Independent” ≠ “integrated”. A court can be independent in a dual system (USA). India is **both**.

Supreme Court — Arts. 124–147 (elaboration)

Part V, Ch. IV: the Union’s apex court — appointment, jurisdiction, and “complete justice”.

- **Art. 124:** The Constitution establishes the **Supreme Court of India**.
- Under **Art. 124(2)**, the **President** appoints every Supreme Court judge after consultation.
- A Supreme Court judge holds office until the age of **65**.
- A Supreme Court judge resigns by writing to the **President**.
- A Supreme Court judge can be removed only through the procedure (प्रक्रिया) in **Art. 124(4)**.
- **Arts. 124A–C** created the **National Judicial Appointments Commission (NJAC)**.
- The **99th Amendment (2014)** inserted these three articles.
- The Supreme Court **struck down** the 99th Amendment and the NJAC Act in **2015** — the text of 124A–C is now dead law.
- **Art. 125** lets Parliament fix the salaries of Supreme Court judges by law.
- These salaries are **charged on the Consolidated Fund of India (भारत की संचित निधि)**.
- A judge's salary cannot be reduced to their disadvantage after appointment, except during a **Financial Emergency (वित्तीय आपात) (Art. 360)**.
- **Art. 126** lets the President appoint an **Acting Chief Justice of India** when the office is vacant or the CJI is absent.
- By convention, the President appoints the **senior-most** available Supreme Court judge as Acting CJI.
- **Art. 127** allows the appointment of an **ad hoc judge** to the Supreme Court.

- An ad hoc judge must be a **sitting High Court judge** who is qualified to be a Supreme Court judge.
- This appointment needs the CJI's request, the President's **previous consent**, and consultation with that judge's High Court Chief Justice.
- An ad hoc judge is appointed only when the Supreme Court lacks a **quorum** (गणपूर्ति) of judges.
- **Art. 128** allows a **retired judge** to sit and act as a Supreme Court judge.
- That retired judge must be a former **Supreme Court judge**, or a High Court judge otherwise qualified for the Supreme Court.
- This requires the consent of both the **President** and the judge concerned.
- **Art. 129** makes the Supreme Court a **court of record**.
- Its acts and proceedings are recorded and treated as evidence.
- The Supreme Court has the power to **punish for contempt of itself**.
- **Art. 130** fixes the Supreme Court's seat at **Delhi**.
- The CJI may, with the President's approval, appoint another place as an additional seat.
- In practice, the Supreme Court has **no permanent outstation benches**.
- **Art. 131** gives the Supreme Court **exclusive original jurisdiction** in federal disputes.
- This jurisdiction covers disputes between the Union and a State, or between States.
- Art. 131 does **not** extend to enforcement of Fundamental Rights or to disputes involving a private party.
- **Art. 132** allows an appeal to the Supreme Court from a High Court judgment on a **constitutional** question.
- This appeal needs a High Court certificate that the case involves a **substantial question of law as to the interpretation of the Constitution**.
- **Art. 133** allows a **civil appeal** to the Supreme Court from a High Court judgment.
- The **30th Amendment (1972)** removed the earlier requirement of a minimum ₹20,000 value for such an appeal.
- **Art. 134** allows a **criminal appeal** to the Supreme Court from a High Court judgment.
- The appeal is automatic if the High Court has reversed an acquittal and sentenced the accused to **death**.
- It is also automatic if the High Court has withdrawn a case from a subordinate court and itself sentenced the accused to death.
- In other criminal matters, an appeal under Art. 134 needs the High Court's **certificate**.
- **Art. 134A**, inserted by the **44th Amendment (1978)**, requires a High Court to consider granting a certificate under Arts. 132, 133 or 134 as soon as it delivers the judgment.
- **Art. 135** lets the Supreme Court exercise the jurisdiction of the old **Federal Court** in any leftover matters, until Parliament provides otherwise.
- **Art. 136** gives the Supreme Court a discretionary power to grant **Special Leave to Appeal (SLP)**.
- This SLP may be granted against the judgment or order of **any court or tribunal** in India.
- Art. 136 does **not** apply to any court or tribunal constituted under a law relating to the **armed forces**.
- **Art. 137** allows the Supreme Court to **review** its own judgment or order.
- **Art. 138** allows Parliament to **enlarge** the Supreme Court's jurisdiction by law.

- **Art. 139** allows Parliament to confer on the Supreme Court the power to issue writs for purposes **other than** Fundamental Rights.
- **Art. 139A**, inserted by the **44th Amendment**, allows the Supreme Court to transfer a case from one High Court to another (or to itself) when it involves the same question of law as a case already before it.
- **Art. 140** allows Parliament to confer on the Supreme Court any further powers that are necessary to exercise its existing jurisdiction.
- **Art. 141** makes the law declared by the Supreme Court **binding on all courts** within India.
- The Supreme Court itself is **not bound** by Art. 141 and may overrule its own earlier judgment.
- **Art. 142** empowers the Supreme Court to pass any decree or order necessary to do **complete justice** in a case before it.
- This power under Art. 142 is unique to the Supreme Court — the High Courts have **no equivalent article**.
- A decree or order passed under Art. 142 is enforceable throughout India.
- **Art. 143** allows the President to refer a question to the Supreme Court for its **advisory opinion**.
- An advisory opinion under Art. 143 is **not binding** on the President.
- Under **143(1)**, the Court *may* decline to answer a reference on a general question of law or fact.
- Under **143(2)**, for a dispute arising out of a pre-Constitution treaty or agreement, the Court *shall* report its opinion.
- **Art. 144** requires all civil and judicial authorities to **act in aid** of the Supreme Court.
- **Art. 145** lets the Supreme Court make rules of practice and procedure, with the President's approval.
- Under **145(3)**, a bench of at least **5** judges must decide any case involving a substantial question of constitutional interpretation, or a reference under Art. 143.
- **Art. 146** provides that the Supreme Court's officers and staff are appointed by the **CJI** (or a person the CJI directs).
- The Supreme Court's administrative expenses, including staff salaries and pensions, are **charged on the Consolidated Fund of India**.
- **Art. 147** clarifies that "interpretation of this Constitution" also covers, where relevant, the **Government of India Act, 1935** and the **Indian Independence Act (अधिनियम), 1947**.

Language (Art. 348): until Parliament otherwise provides, **English** is the language of the SC and of every HC. A Governor, with the President's prior consent, may authorise **Hindi** (or the official State language) in HC proceedings; judgments still have an English version.

Supreme Court — composition & organisation

CJI + judges sit at Delhi; strength is by **ordinary law**, not a 368 amendment.

- The Supreme Court is established by **Art. 124(1)** — not by Art. 214 (that is the High Court) or Art. 226 (HC writs).
- Its seat is fixed at **Delhi** under Art. 130, with **no regular benches** outside Delhi.
- The Supreme Court's **strength** is fixed by Parliament through an **ordinary law**, not a constitutional amendment.

- Its original strength in 1950 was **8** judges.
- That strength grew over time: **11** (1956), **14** (1960), **18** (1977), **26** (1986), and **31** (2008).
- The **Supreme Court (Number of Judges) Amendment Act, 2019** raised the strength to **34**, that is, the CJI plus 33 judges.
- A Supreme Court judge holds office until the age of **65**, with **no extension** of a sitting judge's term.
- A judge also gets **no second term** after retirement.
- A judge resigns by writing to the **President**, not to the CJI.
- The oath of a Supreme Court judge is set out in the **Third Schedule**.
- This oath is taken before the **President**, or a person appointed by the President for that purpose.
- The oath requires the judge to bear true faith to the Constitution, uphold its sovereignty, and perform duties without fear or favour.
- Under **Art. 126**, the President appoints an **Acting CJI**; by convention, this is the senior-most available Supreme Court judge.
- Under **Art. 127**, an **ad hoc judge** must be a **sitting High Court judge**, appointed only to fill a quorum gap.
- A **retired** judge sitting under Art. 128 is a different case altogether.
- A retired judge sits under **Art. 128** with the consent of both the **President** and the judge concerned.
- Such a retired judge draws allowances, but this is **not** a fresh tenure as a "sitting" judge past the age of 65.
- Under **Art. 125**, Parliament fixes the salaries of Supreme Court judges.
- These salaries were originally set out in the **Second Schedule**.
- They are **charged on the Consolidated Fund of India**.
- A judge's salary cannot be varied to their disadvantage after appointment, except during a Financial Emergency.
- An ordinary Supreme Court bench usually has **2–3** judges.
- A **Constitution Bench** must have at least **5** judges.
- The largest-ever bench was **13** judges, in *Kesavananda Bharati*.
- By convention, the **senior-most** Supreme Court judge becomes the CJI.
- This convention was broken in **1973**, when **A.N. Ray** was appointed CJI, superseding Justices Shelat, Hegde and Grover after *Kesavananda*.
- It was broken again in **1977**, when **M.H. Beg** was appointed CJI, superseding **H.R. Khanna**.
- Seniority as the basis for appointing the CJI was restored in **1978**, with **Y.V. Chandrachud** becoming CJI.

PYQ — UPPCS Prelims 2024, Q40

Which Article of the Constitution provides for the establishment of the Supreme Court of India?

A. Article 124 B. Article 214 C. Article 226 D. Article 356 (अनुच्छेद 356)

Show answer

Ans: A — Article 124. 214 = High Courts; 226 = HC writs.

PYQ — UPPCS Prelims 2023, Q19

The resignation letter by a Judge of the Supreme Court is addressed to—

A. The Chief Justice of India B. The senior-most Judge of the Supreme Court C. The President D. The Prime Minister

Show answer

Ans: C — the President.

Qualifications (Art. 124(3))

Citizen of India **and** any **one** of: 1. **High Court judge** for at least **5 years** (in succession (उत्तराधिकार क्रम)), **or** 2. **Advocate of a High Court** for at least **10 years** (in succession), **or** 3. a **distinguished jurist** in the President's opinion.

> **Logic:** "Distinguished jurist" exists **only in 124(3)** — **not** in Art. **217**. It has almost never been used. "In succession" = the years may be in more than one HC, counted together.

Appointment & Collegium — Judges Cases

Pre-Constitution seed: The **Sapru Committee** (Sir Tej (उष्णकटिबंधीय पूर्वी जेट) Bahadur Sapru, **1945**, Non-Party Conference) published recommendations on appointing Supreme Court and High Court judges; those ideas fed into the Constitution's appointment scheme.

Text of Art. 124(2): every SC judge is appointed by the **President** (warrant under hand and seal (मुद्रा)) after **consultation** with such SC/HC judges as he deems necessary. For a judge other than the CJI, the **CJI must always be consulted**.

"Consultation" was defined by case law — **not** by the original text. The Collegium is **extra-constitutional** (judge-made).

First Judges Case (*S.P. Gupta*, **1981**) - The Court held that "consultation" in Art. 124(2) does **not** mean concurrence. - This gave the **executive primacy** in judicial appointments. - The judgment also upheld the transfer of High Court judges without their consent, though this was later narrowed.

Second Judges Case (*SCAORA*, **1993**) - The Court reinterpreted "consultation" to effectively mean **concurrence**. - This gave **primacy to the CJI**, understood as an institution and not as an individual. - This judgment created the **Collegium**: the CJI plus the **2** senior-most Supreme Court judges. - The government is **bound** to appoint a name if the Collegium reiterates it.

Third Judges Case (Art. **143** reference, **1998**) - For **Supreme Court** appointments, the Collegium is the CJI plus **4** senior-most judges. - For **High Court** appointments and transfers, the Collegium is the CJI plus **2** senior-most judges. - The Collegium must also consult the Chief Justice and 2 senior colleagues of the concerned High Court. - It must further consult the senior-most Supreme Court judge who comes from the recommendee's parent High Court. - If **two or more** Collegium judges dissent, the name is **not**

sent to the government. - The CJI's solo opinion, without the Collegium, does **not** amount to "consultation".

NJAC / Fourth Judges Case (*SCAORA*, **16 October 2015**) - The Supreme Court struck down the **99th Amendment** and the **NJAC Act, 2014** by a **4:1** majority. - Justice **Khehar** wrote the majority opinion; Justice **J. Chelameswar** dissented. - The Court held that the NJAC violated the **basic structure** by compromising judicial independence. - The **Collegium system was revived** as a result.

NJAC as it stood (must-know composition)

- The **CJI** chaired the NJAC as an ex officio member.
- Two **senior-most Supreme Court judges** were ex officio members.
- The Union **Law Minister** was an ex officio member.
- Two **eminent persons** were nominated by a committee of the PM, the CJI, and the Leader of Opposition in the Lok Sabha (or the leader of the largest opposition party).
- **One** of these two eminent persons had to be from the SC/ST/OBC (अन्य पिछड़ा वर्ग)/Minority/**Women** categories.
- An eminent person's tenure was **3 years**, with no re-nomination.
- If **any two** members disagreed with a recommendation, the appointment was **not** made — this was the NJAC's veto rule.

> **Logic:** Chronology **1981 executive → 1993 CJI+2 → 1998 CJI+4 → 2014 NJAC in the text → 2015 struck down**. Collegium is **not** in the Constitution; NJAC **was**, and still fell.

Memorandum of Procedure (MoP) after 2015: The Collegium recommends a name, the Law Ministry and Intelligence Bureau send their inputs, and the PM then advises the President. The government may **return** a name once with reasons, but a **reiteration** by the Collegium binds the executive.

Recommending the CJI: the outgoing CJI recommends the **senior-most** Supreme Court judge as successor. The appointment is still formally made by the **President**.

Transfer of judges (Art. 222)

- The **President** may transfer a High Court judge from one High Court to another under **Art. 222**.
- This transfer needs **consultation with the CJI**, which in practice means the Collegium (after 1993/98).
- The **consent of the judge** being transferred is **not** required (*Union of India v. Sankalchand Sheth*; confirmed in the Second Judges Case).
- A transfer is **not**, in law, treated as a punishment.
- A transfer is still **justiciable** if it is shown to be punitive or made in mala fide.
- Art. 222 applies **only to High Court judges** — Supreme Court judges are never "transferred".
- As a matter of policy, the Chief Justice of a High Court is ordinarily an **outsider** brought in by transfer.
- The **15th Amendment** provided a compensatory allowance for judges transferred under Art. 222.

- For any transfer, the Collegium consults the Chief Justices of **both** High Courts involved — the one the judge is leaving and the one they are joining.

Removal / impeachment of judges (Arts. 124(4)–(5), 217(1)(b), 218)

Same process for **SC and HC**. Popularly "impeachment"; constitutionally it is an **address to the President — not** Art. 61.

- The only grounds for removal are **proved misbehaviour** or **incapacity** — no other ground is available.
- Under the **Judges (Inquiry) Act, 1968**, a removal motion needs **100** Lok Sabha members or **50** Rajya Sabha members to sign it.
- The Speaker or the Chairman may **admit or refuse** that motion.
- If admitted, a **3-member inquiry committee** is formed: an **SC judge**, a **High Court Chief Justice**, and a **distinguished jurist**.
- If this committee **clears** the judge, the motion automatically **drops**.
- If the committee finds the judge guilty, each House must pass the address by a **special majority** — a majority of the **total membership** (सदन की कुल सदस्य संख्या का) plus **two-thirds (ते-भागा) of members present and voting (गणपूर्ति)**.
- This special-majority formula is the **same** as Art. 368's first limb, but a judge's removal is **not** a constitutional amendment and needs no State ratification.
- Both Houses must pass the address in the **same session**.
- The **President** then issues the actual order of removal.
- Since **1997**, the judiciary also runs an **in-house inquiry** for misconduct that falls short of removal; this process is not in the Constitution.

No judge has ever actually been removed by this procedure. - **V. Ramaswami** (1993): the inquiry committee found him guilty, but the Lok Sabha motion **failed** because the Congress (कांग्रेस) party abstained. - **Soumitra Sen** (Calcutta HC, 2011): the Rajya Sabha **passed** the motion, but he **resigned** before the Lok Sabha could vote. - **CJI Dipak Misra** (2018): a Rajya Sabha notice was moved, but the Vice-President as Chairman **did not admit** it.

> **Logic:** Resignation → **President**. Removal → **President after parliamentary address**. The **CJI cannot** remove a judge.

Independence of the judiciary

Constitutional shields so the executive cannot pack, starve, or discuss the courts at will.

Mode of appointment - Judges are appointed through the **Collegium** system, so the executive alone cannot pack the court.

Security of tenure - A Supreme Court or High Court judge can be removed only through the address procedure in **Art. 124(4)**.

Fixed service conditions - A judge's salary is **charged** on the Consolidated Fund rather than voted on annually. - That salary cannot be reduced to the judge's disadvantage after appointment. - The only exception is a **Financial Emergency under Art. 360**.

Charged expenditure (भारित) - The salaries of Supreme Court judges, and the Court's administrative expenses under **Art. 146**, are charged on the **Consolidated Fund of India** (भारत की संचित निधि). - The salaries of High Court judges are charged on the **Consolidated Fund of the State**. - Under **Art. 221**, the pensions of High Court judges are charged on the **Consolidated Fund of India**.

Conduct not discussed - Parliament, under **Art. 121**, cannot discuss a judge's conduct in the discharge of their duties. - A State legislature is under the same restriction by **Art. 211**. - The only exception is a discussion during a motion for that judge's removal.

Ban on practice after retirement - Under **Art. 124(7)**, a retired Supreme Court judge cannot plead or act before **any court or authority in India**. - Under **Art. 220**, a retired High Court judge cannot practise before that **same** High Court or the courts subordinate to it. - A retired High Court judge **may** practise before the Supreme Court and other High Courts. - The **7th Amendment** replaced what had earlier been an absolute (निरपेक्ष) ban on a retired High Court judge's practice.

Contempt power - The Supreme Court can punish for contempt of itself under **Art. 129**. - A High Court has the same power under **Art. 215**.

Own staff - The Supreme Court's officers and staff are appointed by the **CJI**, under **Art. 146**. - A High Court's officers and staff are appointed by its **Chief Justice**, under **Art. 229**.

Jurisdiction not easily cut - Parliament cannot take away the Supreme Court's writ jurisdiction under **Art. 32**. - The **42nd Amendment** tried to curb judicial review by inserting Arts. 32A, 131A and 226A. - The **43rd Amendment** restored the earlier position by repealing those three articles.

Separation from the executive - **Art. 50**, a Directive Principle, calls for separating the judiciary from the executive in the public services of the State. - The **CrPC, 1973** implemented this by separating executive magistrates from judicial magistrates in most States.

Power to make rules - The Supreme Court makes its own rules under **Art. 145**, with the President's approval. - A High Court makes its own rules under **Art. 225** and its inherent powers.

Court of Record (Arts. 129, 215)

	Supreme Court (129)	High Court (215)
Status	**Court of record**	**Court of record**
Meaning	Acts and proceedings recorded as **evidence**; power to **punish for contempt of itself**	Same
Subordinate contempt	Of itself and of courts **subordinate to it**	Of itself and of courts subordinate to it

	Supreme Court (129)	High Court (215)
“Complete justice”	**Art. 142 — SC only**	**No** 142 analogue

- **Art. 141:** the law declared by the Supreme Court binds **all courts** within India.
- The Supreme Court itself **can overrule** its own earlier judgment through a larger bench.
- One High Court's judgment **does not bind** another High Court.
- **Art. 142:** the Supreme Court may pass any order needed for **complete justice**, and that order is enforceable throughout India.
- **Art. 144:** all civil and judicial authorities must **act in aid** of the Supreme Court.

Jurisdiction of the Supreme Court

Four buckets in the: **original · writ · appellate · advisory**, plus **review / SLP / other**.

1. Original — three different originals (do not mix)

- **Art. 131** gives the Supreme Court **exclusive** federal original jurisdiction.
- This covers disputes between the Union and a State, between the Union and States together, or between States.
- The dispute must involve a question of law or fact on which a **legal right** depends.
- **Art. 32** gives the Supreme Court original jurisdiction to enforce **Fundamental Rights only**.
- This Art. 32 jurisdiction is **not exclusive** — High Courts have a parallel writ power under Art. 226.
- **Art. 71** gives the Supreme Court **exclusive** original jurisdiction over disputes about the **election of the President or Vice-President**.
- If the Supreme Court later voids such an election, acts done by that President or Vice-President **before the date of the decision remain valid**.
- Parliament may regulate the procedure for such Art. 71 disputes by law.

PYQ — UPPCS Prelims 2023, Q5

With reference to the election of the Vice-President of India, which is declared void by the Supreme Court of India, which of the following statement(s) is/are correct?

1. The acts done by him as Vice-President before such declaration are considered valid.
2. The acts done by him as Vice-President on the day of such declaration are not considered valid.

A. Only 1 B. Only 2 C. Both 1 and 2 D. Neither 1 nor 2

Show answer

Ans: A — Only 1. Art. **71(2):** acts done **before the date of the SC’s decision** remain valid.

Art. 131 — cannot be used for - Enforcement of **FRs** (→ 32) - Union/State **vs a private person** (or a PSU merely because the government holds shares — *State of Bihar v. UoI*) - Disputes arising from a **pre-Constitution treaty / agreement / sanad** (proviso to 131) — those go, if at all, under **143(2)Art. 262 —**

water (classic trap): Parliament **may** provide a tribunal for inter-State river disputes and **may bar** the SC and other courts. The **Inter-State River Water Disputes Act, 1956 did bar** 131. So "SC has original jurisdiction over river-water disputes" is **false**.

2. Writ — Art. 32

- Art. 32 is itself a **Fundamental Right** — the right to move the Supreme Court for enforcing other FRs.
- The Supreme Court's five writs (पाँच प्रकार की रिटें) under Art. 32 are available **for Fundamental Right enforcement only**.
- Under **32(3)**, Parliament may empower **any other court** to issue these same writs within its local limits — this power is rarely used.
- Under **32(4)**, this right **shall not be suspended** except as the Constitution otherwise provides (that is, under **Art. 359**).
- **Art. 32** covers Fundamental Rights only; **Art. 226** additionally covers any other legal right.
- The **five writs** are: Habeas Corpus (बन्दी प्रत्यक्षीकरण), Mandamus (परमादेश), Prohibition (प्रतिषेध), Certiorari (उत्प्रेषण), and Quo Warranto (अधिकार-पृच्छा).

PYQ — UPPCS Prelims 2023, Q11

Consider the following statements concerning the powers of the Supreme Court to issue certain writs to stop violation of Fundamental Rights—

1. The Supreme Court has power to issue writs like Habeas Corpus, Mandamus, Prohibition, Quo Warranto and Certiorari for the enforcement of Fundamental Rights.
2. Parliament may by law empower any other court to exercise within its jurisdiction the powers given to the Supreme Court.

A. Both 1 and 2 B. Only 1 C. Only 2 D. Neither 1 nor 2

Show answer

Ans: A — Both (Art. 32(2) and 32(3)).

3. Appellate — Arts. 132–134A

- **Art. 132** allows an appeal from a High Court in a **civil, criminal, or other** case.
- This Art. 132 appeal needs an HC certificate that the case involves a **substantial question of law as to the interpretation of the Constitution**.
- **Art. 133** allows a **civil** appeal from a High Court.
- This needs a substantial question of law of general importance, and the HC's own opinion that the Supreme Court should decide it.
- The **30th Amendment (1972)** removed the old **₹20,000** pecuniary floor for this civil appeal.
- **Art. 134** allows a **criminal** appeal from a High Court in three situations.
- First, the HC on appeal has **reversed an acquittal** and sentenced the accused to **death**.
- Second, the HC has **withdrawn** a case from a subordinate court and itself sentenced the accused to death.
- Third, the HC has **certified** the case as fit for appeal to the Supreme Court.

- **Art. 134A**, added by the **44th Amendment (1978)**, requires the HC to **consider** granting a 132/133/134 certificate as soon as it delivers the judgment.
- Under **Art. 134(2)**, Parliament may enlarge this criminal appellate jurisdiction by law.
- The **Supreme Court (Enlargement of Criminal Appellate Jurisdiction) Act, 1970** did this, allowing appeals as of right in specified cases of life imprisonment or a sentence of 10+ years.
- A certificate is **not** needed at all if the party instead goes under **Art. 136** (SLP).

4. Special Leave Petition — Art. 136 (widest)

- Under Art. 136, the Supreme Court **may** grant leave to appeal from **any** judgment, decree, determination, sentence or order.
- This leave can be granted against **any court or tribunal** in India, and is not limited to "final" orders.
- Granting leave is **not a right** for the party — it is entirely at the Supreme Court's **discretion**.
- Art. 136 is the **widest appellate window** in the Constitution.
- This SLP power **does not lie** against a court or tribunal relating to the **armed forces**.
- An SLP can **leapfrog** the High Court, and can even be filed from a tribunal that is not technically a "court".

5. Review — Art. 137

- Under Art. 137, the Supreme Court may review **its own** earlier judgment or order.
- This review follows the Supreme Court Rules, modelled on **Order XLVII of the CPC**.
- The recognised grounds are an **error apparent on the face of the record**, discovery of new evidence not earlier available despite diligence, or any other sufficient reason.
- A review petition is **not** a rehearing of the case on merits.
- A review is typically heard by a **smaller bench**, often the same judges, usually by circulation.
- A **curative petition** may follow only after a review has failed — see *Rupa Ashok Hurra* (2002) below.

6. Advisory — Art. 143

	143(1)	143(2)
Who	**President** (CoM advice)	**President**
What	Question of **law or fact** of public importance	Dispute from a **pre-Constitution treaty / agreement** (the 131-proviso matters)
Can SC decline?	**Yes**	**No** — "the Court **shall** … report"
Binding?	**Not binding** (followed in practice)	Same — still advisory
Bench	**≥5** if it is a substantial constitutional question (145(3))	Same

Famous 143 references (match-list): *Delhi Laws Act* (1951) · *Berubari* (1960, cession needs Amd) · *Keshav Singh* (1965, privileges) · *Presidential Poll* (1974) · *Special Courts Bill* (1978) · *Cauvery* (1992) ·

Third Judges (1998) · *Gujarat Assembly election* (2002) · *2G / natural resources* (2012). NJAC was **litigation**, not 143.

Other / residual

- Under **Art. 138**, Parliament may enlarge the Supreme Court's jurisdiction by law.
- Under **Art. 139**, Parliament may confer on the Supreme Court the power to issue writs for purposes other than Fundamental Rights.
- Under **Art. 140**, Parliament may grant the Supreme Court powers supplemental to its existing jurisdiction.
- Under **Art. 139A** (44th Amendment), the Supreme Court may transfer High Court cases that involve the **same question of law**.
- Under **Art. 317**, the President removes a **UPSC (संघ लोक सेवा आयोग) or SPSC** member only **after an inquiry by the Supreme Court** — this is not "impeachment".
- Under **Art. 329** and the Representation of the People Act, election petitions for an **MP or MLA** lie in the **High Court**, **not** the Supreme Court.
- Only **President and Vice-President** elections are decided as the Supreme Court's original jurisdiction, under **Art. 71**.

42nd / 43rd / 44th — judiciary

Emergency clipped judicial review; Janata restored it. **Not** a before/after pair table — three successive amendments.

- The **42nd Amendment (1976)** inserted **Art. 32A**, barring the Supreme Court from considering the constitutional validity of **State** laws.
- It also inserted **Art. 131A**, giving the Supreme Court **exclusive** jurisdiction over the validity of **Central** laws.
- It also inserted **Art. 226A**, barring High Courts from examining the validity of Central laws.
- It also inserted **Art. 228A**, and separately **narrowed Art. 226** and made **Art. 227** an administrative-only power.
- The **43rd Amendment (1977)repealed Arts. 32A, 131A and 226A**, so High Courts could **again** examine Central laws.
- The **44th Amendment (1978)** restored **Art. 226** and **Art. 227** to their full original scope.
- The 44th Amendment also added **Art. 134A** (certificate) and **Art. 139A** (transfer of cases).

> **Logic:** 2019 A/R "SC has **exclusive** jurisdiction on constitutional validity of Central laws" is **false** because **43rd** killed **131A**.

PYQ — UPPCS Prelims 2019, Q104Assertion (A): The Supreme Court of India has exclusive jurisdiction regarding Constitutional validity of Central laws.

Reason (R): The Supreme Court is the Guardian of the Indian Constitution.

A. Both (A) and (R) are true and (R) is the correct explanation of (A) B. Both (A) and (R) are true, but (R) is not the correct explanation of (A) C. (A) is true, but (R) is false D. (A) is false, but (R) is true

Show answer

Ans: D. (A) is **false**. The 42nd Amendment had inserted Art. **131A** (SC exclusive on central laws); the **43rd Amendment (1977) repealed it**. Today **both SC and HCs** can examine the constitutional validity of Central laws. (R) is true.

PYQ — UPPCS Prelims 2020, Q120 / 2022, Q37

The Supreme Court of India enunciated the doctrine of "Basic Structure of the Constitution" in

A. Golaknath (गोलकनाथ 1967), 1967 B. *Kesavananda Bharati*, 1973 C. Shankari Prasad, 1951 D. Sajjan Singh, 1965

(2022 options equivalent: Kesavananda vs Golaknath vs Chitralekha vs Yusuf.)

Show answer

Ans: *Kesavananda Bharati* (1973). Judicial review / basic structure — see below.

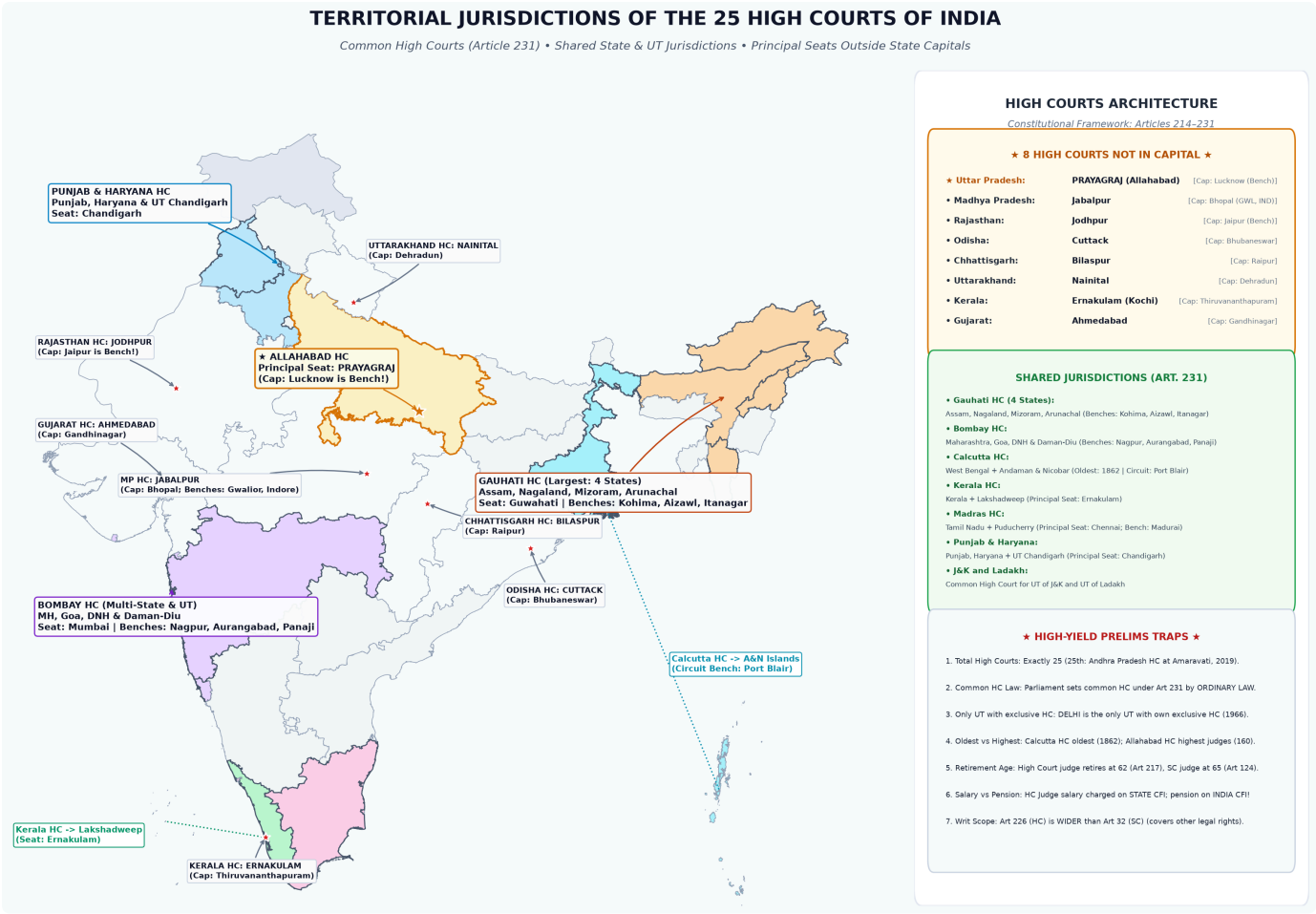
High Courts — Arts. 214–231 (elaboration)

Part VI, Ch. V: a High Court for each State — writs **wider** than the SC's, age **62**.

- **Art. 214** provides that there **shall be** a High Court for each State.
- **Art. 215** makes every High Court a **court of record**, on the same footing as Art. 129 for the Supreme Court.
- **Art. 216** provides that a High Court consists of a Chief Justice and such other judges as the **President** may from time to time appoint.
- The Constitution places **no ceiling** on the number of judges of a High Court.
- **Art. 217** governs the appointment and tenure of a High Court judge.
- A High Court judge is appointed by the **President** and holds office until the age of **62**.
- A High Court judge resigns by writing to the **President**.
- A High Court judge's removal follows the same procedure as a Supreme Court judge, under **Art. 124(4)**.
- **Art. 218** applies the provisions of Arts. 124(4) and 124(5) to High Court judges as well.
- **Art. 219** requires a High Court judge to take oath before the **Governor** of the State (or, for a common High Court, before the Governor specified by the President).
- **Art. 220** restricts a retired High Court judge's practice.
- After the **7th Amendment**, a retired judge cannot practise before **that same** High Court or the courts subordinate to it, but **may** practise before the Supreme Court and other High Courts.
- **Art. 221** provides that a High Court judge's salary is determined by Parliament.
- That salary is **charged on the Consolidated Fund of the State**.
- A High Court judge's **pension**, however, is charged on the **Consolidated Fund of India**.
- **Art. 222** allows the President to transfer a High Court judge to another High Court, after consulting the CJI.

- The transferred judge's **consent is not required**.
- **Art. 223** allows the President to appoint an **Acting Chief Justice** of a High Court.
- This applies when the office of Chief Justice is vacant or the Chief Justice is temporarily absent; by convention, the senior-most judge of that HC is appointed.
- **Art. 224** provides for **additional** and **acting** judges of a High Court.
- An **additional judge** is appointed for a temporary increase in business or arrears, for a term of **up to 2 years**, and must in any case vacate office at **62**.
- An **acting judge** is appointed when a sitting judge is absent or is acting as Chief Justice.
- **Art. 224A**, inserted by the **15th Amendment**, lets the Chief Justice of a High Court, with the President's previous consent, request a **retired** High Court judge to sit and act.
- **Art. 225** continues the pre-Constitution jurisdiction of each High Court, subject to the Constitution and to any law.
- **Art. 226** gives a High Court writ jurisdiction for enforcing Fundamental Rights **and for any other purpose**.
- This makes Art. 226 **wider** than the Supreme Court's Art. 32.
- The **15th Amendment** allowed a High Court to issue such a writ if the cause of action arises wholly or in part within its territory, even if the authority concerned sits outside it.
- **Art. 227** gives a High Court the power of **superintendence** over all courts and tribunals in its territory, except those relating to the **armed forces**.
- This superintendence covers both **administrative and judicial** matters; the **44th Amendment** restored this full power after the **42nd Amendment** had made it administrative-only.
- **Art. 228** lets a High Court **withdraw** a case from a subordinate court if it involves a substantial question of constitutional interpretation, and decide that question itself.
- **Art. 229** provides that a High Court's officers and staff are appointed by its **Chief Justice**.
- The High Court's administrative expenses are charged on the **Consolidated Fund of the State**.
- **Art. 230** allows Parliament to extend a High Court's jurisdiction to a Union Territory, or to exclude a Union Territory from its jurisdiction.
- **Art. 231** allows Parliament, by an **ordinary law**, to establish a **common High Court** for two or more States, or for a State and a Union Territory.
- Creating a common High Court under Art. 231 is **not** a constitutional amendment under Art. 368.

Cartographic Reference: Territorial Jurisdictions of the 25 High Courts & Non-Capital Seats



High Courts — organisation

25 High Courts; a judge of an HC is **not** a “mini SC judge” (age **62**, **no** distinguished-jurist limb).

- India has **25** High Courts, after Andhra Pradesh and Telangana split into separate High Courts on **1 January 2019**.
- The **strength** of a High Court is **not fixed** in the Constitution — the President decides it from time to time.
- A High Court judge holds office until the age of **62**.
- The **15th Amendment (1963)** raised this age from **60 to 62**.
- The **114th Constitutional Amendment Bill**, which proposed raising the HC retirement age to **65**, **lapsed**.
- A High Court judge resigns by writing to the **President**.
- The removal of a High Court judge follows the **same procedure** as for a Supreme Court judge.
- A High Court judge takes oath before the **Governor**.
- Under **Art. 217(2)**, a High Court judge must be a citizen of India and either a **judicial officer in India for 10 years**, or an **advocate of a High Court for 10 years** (in succession).
- Unlike the Supreme Court, there is **no "distinguished jurist"** route for a High Court judge.
- The President appoints a High Court judge after consulting the **CJI and the Governor** of the State (and the Chief Justice of that HC, if a judge other than the CJ is being appointed).

- The Collegium for this consultation is the CJI plus **2** senior-most Supreme Court judges, together with that High Court's Chief Justice and its two senior-most judges.
- By convention, the Chief Justice of a High Court is an **outsider** brought in by transfer.
- Even a transferred Chief Justice still takes oath before the **Governor of that State**.

Chartered High Courts (Indian High Courts Act, 1861 → Letters Patent 1862) — oldest three, with original civil jurisdiction inside the presidency (प्रेसीडेंसी) town:Calcutta, Bombay, Madras (all **1862**). Calcutta is the **first** (1 July 1862).

Common / shared High Courts

- **Punjab & Haryana** (Chandigarh): Punjab, Haryana, **Chandigarh**.
- **Bombay:** Maharashtra, **Goa** (गोवा), Dadra (दादरा) & Nagar Haveli and Daman & Diu.
- **Calcutta:** West Bengal, **Andaman (अंडमान) & Nicobar (निकोबार)**.
- **Madras:** Tamil Nadu, **Puducherry**.
- **Kerala** (Ernakulam): Kerala, **Lakshadweep** (लक्षद्वीप).
- **Gauhati:** Assam, **Nagaland, Mizoram, Arunachal Pradesh**.
- **J&K and Ladakh:** J&K + **Ladakh** (लद्दाख) (reorganised 2019).

Establishment years (match-list)

- **Calcutta / Bombay / Madras:1862** — Kolkata / Mumbai / Chennai.
- **Allahabad:1866** — Prayagraj (प्रयागराज).
- **Karnataka (Mysore (मैसूर)):** 1884 — Bengaluru.
- **Patna (पटना):** 1916 — Patna.
- **J&K:** 1928 — Srinagar / Jammu.
- **Rajasthan:** 1949 — Jodhpur (Jaipur bench).
- **Gujarat:** 1960 — Ahmedabad (अहमदाबाद).
- **Delhi:1966** — New Delhi (UT HC).
- **HP:** 1971 — Shimla.
- **Sikkim:** 1975 — Gangtok.
- **Chhattisgarh / Uttarakhand (उत्तराखंड) / Jharkhand:2000** — Bilaspur / Nainital (नैनीताल) / Ranchi.
- **Manipur / Meghalaya / Tripura:2013** — Imphal / Shillong / Agartala.
- **Andhra Pradesh & Telangana (split):2019** — Amaravati (अमरावती) / Hyderabad (हैदराबाद).

Allahabad High Court (UP Special)

Largest High Court in India; Lucknow is a **bench**, not a second HC.

- The **Indian High Courts Act, 1861** was the enabling statute; the actual **Letters Patent** for this HC were issued on **17 March 1866**.
- Its birth name was the **High Court of Judicature for the North-Western Provinces**.
- Its **first seat** was at **Agra** (आगरा) (1866), replacing the old **Sadr (सद्र) Diwani (दीवानी) Adalat**.
- The seat **shifted to Allahabad in 1869**.

- It took the name **"High Court of Judicature at Allahabad"** under a supplementary Letters Patent in **1919**.
- Its **first Chief Justice** was Sir **Walter Morgan**.
- The **Lucknow Bench** was created by the **United Provinces High Courts (Amalgamation) Order, 1948**.
- This Order merged the **Chief Court of Oudh** (which had existed at Lucknow from **1925**) into the Allahabad High Court.
- Lucknow became a **permanent bench**, while the **principal seat** stayed at **Allahabad (Prayagraj)**.
- The Lucknow Bench handles the **Avadh/Oudh** districts, classically **12** in number, while the rest of UP is heard at Allahabad.
- Its sanctioned strength is **160** judges, making it the **largest High Court in India**.
- Its jurisdiction covers the whole of **Uttar Pradesh** (उत्तर प्रदेश) only — Uttarakhand has had its own **Nainital High Court** since 2000.

> **Logic:** Lucknow is a **bench**, not a second High Court and not a "common HC". Allahabad is **not** a Chartered HC of 1862.

Jurisdiction of a High Court

226 is the engine; **227** is superintendence — neither is a substitute for appeal.

- Under **Art. 225**, along with its charter or statute, a **Chartered High Court** has **original civil jurisdiction** for its presidency town.
- This original jurisdiction also covers company (कंपनी) matters, matrimonial cases, admiralty, and contempt.
- The biggest slice of original jurisdiction is the **writ power under Art. 226**.
- Under **Art. 226**, a High Court can issue writs for enforcing **Fundamental Rights, and for any other legal right**.
- This writ jurisdiction is **discretionary** — the HC may refuse relief for laches or if an alternative remedy exists.
- The **15th Amendment** lets a High Court issue a writ if the **cause of action** arises wholly or in part inside its territory, even if the authority concerned sits outside.
- Under **226(4)**, this power does **not** affect the Supreme Court's power under **Art. 32**.
- A High Court's **appellate** jurisdiction covers appeals from district, sessions, and other courts as the law provides.
- **Letters-patent appeals** are a special appellate route available in the Chartered High Courts.
- Under **Art. 227**, a High Court has **supervisory** power over all courts and tribunals in its territory, except those relating to the armed forces.
- This supervisory power covers both **administrative and judicial** matters, a scope the **44th Amendment** restored.
- Neither Art. 226 nor Art. 227 is meant to be a **substitute for a regular appeal**.

- Under **Art. 215**, a High Court is a **court of record**: it can record its proceedings as evidence and punish for contempt of itself.
- Under **Art. 235**, the **control** over district judges and the judicial service — posting, promotion, and leave — rests with the **High Court**.
- The **appointment** of district judges, by contrast, is governed by **Art. 233** (see Subordinate Courts below).
- Under **Art. 228**, a High Court may **withdraw** a case from a subordinate court if it raises a substantial question of constitutional interpretation.

SC writ vs HC writ

	Art. 32 (SC)	Art. 226 (HC)
Nature	**Fundamental Right**	Constitutional right (**not** a FR)
Scope	**FR only**	FR **+ any other legal right**
Territorial	All-India	Territory / **cause of action** (15th)
Against	State (Art. 12)	State; some writs (habeas, quo warranto) can reach private persons
Refusal	SC ordinarily **cannot** refuse if an FR is breached	HC **may** refuse (discretion)
Suspend	Only **359**	Not a FR — but 226 itself was **narrowed by 42nd, restored by 44th**

SC vs HC (one table)

Point	SC	HC
Establishment	**124**	**214**
Age	**65**	**62** (15th Amd: 60→62)
Distinguished jurist	**Yes**	**No**
Judicial office / advocate	5y HC judge / 10y HC advocate	**10y** judicial office / **10y** HC advocate
Oath	**President**	**Governor**
Resignation to	**President**	**President**
Removal	124(4)	**Same** (218)
Court of record	129	215
Writ	32 (FR only)	**226** (wider)
Complete justice	**142**	**No**

Point	SC	HC
After retirement, practice	**No court in India** (124(7))	Not that HC / below; **may** SC & other HCs (220)
Salary charged on	**CFI**	**State CFI** (pension on **CFI**)
Staff appointed by	**CJI** (146)	**HC CJ** (229)
Superintendence	Apex via appeal / 136	**227** over all courts/tribunals in the State
Transfer	Not under 222	**222**

Indian SC vs US Supreme Court (syllabus trap)

	India	USA
System	**Integrated**	**Dual** (federal + state)
Appointment	President + **Collegium**	President + **Senate confirmation**
Tenure	Until **65**	**Life** (during good behaviour)
Original jurisdiction	131 (federal) + 32 + 71	Narrow federal original (ambassadors, states)
Advisory opinion	**Yes (143)**	**No** (case-or-controversy)
Judicial review	Explicit 13/32/131/226 + basic structure	*Marbury v. Madison* (implied)
Number of judges	Parliament by law (**34**)	Congress; currently **9**

Judicial Review

Power of courts to test **constitutionality** of legislative and executive action and strike down what is ultra vires. Itself **basic structure** (*Kesavananda* 1973; *Minerva Mills* 1980; *L. Chandra Kumar* 1997). **Not one article** — scattered.

- **Art. 13** declares that any law inconsistent with the Fundamental Rights is **void**.
- **Arts. 32 and 226** provide the writs that operationally enforce judicial review.
- **Art. 131** (federal original), **Art. 136** (SLP), and **Art. 143** (advisory) also carry judicial-review functions.
- **Arts. 245–246, 251 and 254** decide legislative **competence** and settle **repugnancy** between Union and State laws.
- **Art. 227** gives a High Court superintendence over courts **and tribunals** in its territory.
- **Art. 372** continues pre-Constitution laws, but only **subject to** the Constitution.

Three slices: review of **legislation** · of **administrative action** · of **judicial decisions** (appeal / revision / 136).

JR ≠ appeal. Appeal rehear **merits** (error of fact/law). JR asks only: did the authority have **jurisdiction**, follow **procedure** (प्रक्रिया), and stay inside the **Constitution**? Administrative-law grounds (shorthand): **illegality · irrationality (Wednesbury) · procedural impropriety**.

India	USA	UK
Explicit (13, 32, 226…)	*Marbury v. Madison* (implied)	**Parliamentary supremacy** — no JR of primary Acts
JR = **basic structure**	No "basic structure" label	—

- ***Kesavananda Bharati* (1973)** held that even **constitutional amendments** are subject to judicial review under the basic structure doctrine.
- ***Minerva Mills* (1980)** held that judicial review is **itself part of the basic structure**, and struck down the 42nd Amendment's over-reaching **Art. 31C**.
- ***I.R. Coelho* (2007)** held that laws placed in the **9th Schedule** (9वीं अनुसूची) after **24 April 1973** remain open to judicial review if they damage the basic structure.
- ***S.P. Sampath Kumar* (1987)** upheld the CAT and treated it as an **effective substitute** for the High Court — tribunal order could go **directly to the SC**, skipping the HC.
- ***L. Chandra Kumar* (1997)** overruled that substitute theory.
- The Court held that **HC power under Arts. 226/227 over tribunals is part of the basic structure** and cannot be excluded.
- After *L. Chandra Kumar*, a tribunal is only a **court of first instance** that **supplements** (does not replace) the HC's place in the hierarchy.

> **Logic:** 42nd clipped JR (**32A / 131A / 226A**); **43rd** restored. A tribunal clause that "excludes all courts except the SC" **cannot** oust the HC.

PYQ — UPPCS Prelims 2020, Q126Assertion (A): Indian federalism is called 'Quasi-federal'.

Reason (R): India has an independent judiciary (स्वतंत्र) with power of Judicial Review.

A. Both (A) and (R) are true and (R) is the correct explanation of (A) B. Both (A) and (R) are true, but (R) is not the correct explanation of (A) C. (A) is true, but (R) is false D. (A) is false, but (R) is true

Show answer

Ans: B. Both true. Quasi-federal = **strong Centre** (Wheare), **not** because of JR.

Judicial Activism vs Judicial Restraint vs Overreach

Term **"judicial activism"**: Arthur **Schlesinger Jr., 1947** (USA). In India it is **post-Emergency**, via PIL + Art. **21** expansion + Art. **142**. **Not** in the Constitution.

	Activism	Restraint	Overreach
Meaning	Court fills a **gap** where the other organs have failed	Court **defers**; decides only what is necessary	Court **takes over** legislative/executive policy
Vehicle	PIL, 142, expansive **21**	Literal reading (रीडिंग); *A.K. Gopalan*	Continuing mandamus that runs a ministry

	Activism	Restraint	Overreach
Examples	*Maneka*; *Hussainara*; *Vishaka*; *M.C. Mehta*; *Olga Tellis*	Refusal to rewrite a tax statute	Highway liquor ban / some firecracker / anthem directions (criticised as policy)

Art. 21 expansions that are activism-facts (match): speedy trial · legal aid · livelihood (*Olga Tellis*) · privacy (*Puttaswamy*) · clean environment (पर्यावरण) (*M.C. Mehta*) · dignity · emergency medical care (*Parmanand Katara*).

> **Logic:** Activism can be **constitutional** (enforcing FRs). Overreach is activism that **violates separation of powers**. Restraint is a **doctrine of self-limit**, not an article. *ADM Jabalpur* is **bad restraint** (Emergency habeas).

PIL (Public Interest Litigation)

Not in the text. Judge-made through **32** and **226**. USA 1960s civil-rights litigation is the cousin; India took it up **after the Emergency**.

Traditional lis vs PIL

	Traditional	PIL
Who	Aggrieved person only (**locus standi**)	Any **public-spirited** person / NGO; court may act **suo motu**
Form	Formal petition	Even a **letter / postcard** (**epistolary jurisdiction**)
Character	Adversarial	**Inquisitorial / collaborative** (court, amicus, reports)
Relief	Personal	For a **class** of victims who cannot come to court
Against	Private or State	Primarily **State / Art. 12 authorities** — not a private quarrel

Features (raata) 1. Relaxed locus standi. 2. Epistolary + **suo motu**. 3. Inquisitorial (commissions, NHRC (राष्ट्रीय मानव अधिकार आयोग), CPCB (केंद्रीय प्रदूषण नियंत्रण बोर्ड) reports). 4. Preventive **and** remedial. 5. Directed at **public injury**, not private gain. 6. Court may appoint **amicus curiae**. 7. Continuing mandamus (monitor compliance). 8. Costs / dismissal for **frivolous** PILs.

Who / what is not PIL (SC 1998 guidelines — "cannot") Personal / political / publicity interest · landlord–tenant · service matter of an individual · admission to a college · recovery of a loan · a dispute already in a competent court.

- ***Mumbai Kamgar Sabha* (1976)**, decided by Justice **Krishna Iyer**, is treated as an early precursor to PIL.
- ***Hussainara Khatoon* (1979)** was about the plight of undertrial prisoners.
- This case held that a **speedy trial** is part of the right to life under **Art. 21**, and is treated as the **first big PIL**.
- ***Sunil Batra* (1978/80)** dealt with prisoners' rights.

- ***PUDR* (Asiad workers, 1982)** dealt with bonded and contract labour.
- ***S.P. Gupta* (1981)** held that **any member of the public** with **sufficient interest** can move the court in a PIL.
- ***Bandhua Mukti Morcha* (1984)** dealt with bonded labour (बंधुआ मज़दूरी).
- This case also confirmed that even a **letter** can be treated as a petition.
- ***Olga Tellis* (1985)** was about the livelihood rights of pavement dwellers.
- ***Sheela Barse* (1983)** was about the condition of women prisoners.
- ***M.C. Mehta*** (Oleum gas leak, Ganga (गंगा) pollution, Taj Mahal (ताज महल), CNG — from **1986** onward) is a family of PILs on the **environment**.
- These *M.C. Mehta* cases developed the doctrine of **absolute liability**.
- They also entrenched the **polluter pays** principle.
- ***Vishaka* (1997)** laid down guidelines against workplace sexual harassment, to hold **until a statute** was enacted.
- ***Common Cause* (various cases)** has covered issues like blood banks and road safety.
- **P.N. Bhagwati** and **V.R. Krishna Iyer** are regarded as the "fathers" of Indian PIL.
- The -fact answer for "CJI when PIL was introduced" (2018 UPPCS options) is **Bhagwati**.
- PIL as a device actually took off earlier, under CJI **Chandrachud** in *Hussainara* (1979), but that name was **not** among the 's options.
- **P.N. Bhagwati** served as CJI from **12 July 1985 to 20 December 1986**.

PYQ — UPPCS Prelims 2018, Q145

Who was the Chief Justice of India when Public Interest litigation was introduced in the Indian Judicial system?

A. M. Hidayatullah B. A.M. Ahmedi C. P.N. Bhagwati D. A.S. Anand

Show answer

Ans: C — P.N. Bhagwati.

PYQ — UPPCS Prelims 2025, Q47Assertion (A): Public Interest Litigation is essential for the rule of law in India.

Reason (R): Public Interest Litigation provides effective access to justice to socially and economically weaker sections.

A. Both (A) and (R) are true, but (R) is not the correct explanation of (A) B. (A) is false, but (R) is true C. (A) is true, but (R) is false D. Both (A) and (R) are true and (R) is the correct explanation of (A)

Show answer

Ans: D. Access to justice for the weak **is** why PIL is treated as essential to the rule of law.

Review petition & Curative petition

	Review (Art. 137)	Curative
Source	**137** + SC Rules (Order XLVII analogue)	Judge-made — ***Rupa Ashok Hurra v. Ashok Hurra* (2002)**
When	Against the SC's **own** judgment	**Only after review is dismissed** — last constitutional resort
Time	Ordinarily **30 days**	No separate article; still a rarity
Grounds	(i) error **apparent on the face of the record** (ii) new evidence not earlier available despite diligence (iii) other sufficient reason. **Not** a rehearing on merits	(i) **violation of natural justice** (not heard) (ii) **bias** of a judge who sat (iii) abuse of process of the court
How heard	Usually **circulation in chambers** by the **same bench**; oral hearing exceptional	Papers to the **3 senior-most judges** + the judges who decided the review (if available). A **senior advocate must certify** that the grounds are made out
HC parallel	HCs also review under their rules / CPC	**No** curative in the HC (SC-only device)

> **Logic:** Exhaustion order: **appeal / SLP** → **review** → **curative**. There is **no** "curative article". A second review is not the same thing as a curative.

Women Judges (firsts)

Firsts are match-list bait — **Fathima = SC, not Kerala Governor**.

- **First woman advocate (India):Cornelia Sorabji** (1890s — practised in Allahabad/Calcutta; not a judge).
- **First woman district judge:Anna Chandy** (Travancore, **1937**).
- **First woman HC judge:Anna Chandy** (Kerala HC, **1959**).
- **First woman SC judge:M. Fathima Beevi** (elevated from Kerala HC, **6 Oct 1989**). First **Muslim** woman in the higher judiciary.
- **First woman Chief Justice of an HC:Leila Seth** (Himachal (हिमाचल) Pradesh, **1991**).
- **First woman elevated from the Bar to the SC:Indu Malhotra** (**2018**).
- **First woman CJI:none yet** (Aug 2026). B.V. Nagarathna is in line for a short **2027** tenure — do not write a name as "first CJI".
- **Fathima Beevi — Governor:Tamil Nadu 1997–2001 — not Kerala**. Died **2023**.

CJI firsts (match): first CJI **H.J. Kania** · first Dalit (दलित) **K.G. Balakrishnan** · first Sikh **J.S. Khehar**.

PYQ — UPPCS Prelims 2024, Q144

Fathima Beevi died recently. Consider the following statements regarding her:

1. She was the first woman judge of the Supreme Court of India.
2. She served as the Governor of Kerala from 1997-2001.
3. She was the first Muslim woman to enter into higher judiciary.

A. 1 and 2 B. 1 and 3 C. Only 1 D. 1, 2 and 3

Show answer

Ans: B — 1 and 3. Governor of **Tamil Nadu**, not Kerala.

Subordinate Courts (Arts. 233–237)

Part VI, Ch. VI. The "district judiciary" — **not** "lower" in independence; only in hierarchy.

- Under **Art. 233(1)**, district judges are **appointed by the Governor** of the State.
- This appointment needs **consultation with the High Court** of that State.
- **Art. 233(2)** governs a **direct recruit from the Bar** — a person not already in Union or State service.
- Such a recruit must be an **advocate for 7 years** and must be **recommended by the High Court**.
- A **promotee** from the judicial service does **not** need this 7-year Bar requirement.
- **Art. 233A**, inserted by the **20th Amendment (1966)**, **validated** certain earlier district-judge appointments that had been made without proper HC consultation.
- **Art. 234** governs recruitment to the **State judicial service**, for posts below district judge.
- This recruitment is by the **Governor**, after consulting the **High Court and the State Public Service Commission (राज्य लोक सेवा आयोग)**.
- In practice, this service has two entry streams: **direct recruitment from the Bar** and **promotion** from within the service.
- **Art. 235** vests **control** over district courts and the courts subordinate to them in the **High Court**.
- This HC control covers posting, promotion, leave, transfer, and discipline of district judges and of the judicial service below them.
- Under **Art. 236**, "district judge" is defined to include a judge of a **city civil court**, an additional/joint/assistant district judge, the chief judge of a **small-cause court**, a sessions or additional or assistant sessions judge, and a chief (or additional) presidency magistrate.
- Under **Art. 236**, "judicial service" means the service of persons holding the post of district judge and other **civil judicial** posts **inferior to** district judge.
- **Art. 237** lets the Governor **direct** that Arts. 233–235 apply to certain classes of **magistrates**, subject to specified exceptions.

> **Logic:** Appointment of DJ = Governor + HC (233). Control after appointment = HC alone (235). **The Governor has** no *disciplinary role over the district judiciary. All India Judges' Association* cases: uniform service conditions; Centre was asked to consider an AIJS.

District Courts — hierarchy & work

```
SC
 └─ High Court
 └─ District & Sessions Judge ← SAME person: civil = DJ; criminal = Sessions
 ├─ Civil Judge (Senior Division) ≈ Chief Judicial Magistrate
 └─ Civil Judge (Junior Division) ≈ Judicial Magistrate 1st / 2nd class
```

- The **District and Sessions Judge** is one person holding two roles.
- As **District Judge**, they head the principal civil court of **original** jurisdiction and hear appeals from junior civil judges.
- As **Sessions Judge**, they try offences punishable with death, life imprisonment, or 10+ years, as the Code provides, and hear criminal appeals from magistrates.
- A **Civil Judge (Senior Division)**, who doubles as **Chief Judicial Magistrate**, handles higher-value original civil suits and can try criminal cases up to **7 years'** imprisonment under the CrPC.
- A **Civil Judge (Junior Division)**, who doubles as a **Judicial Magistrate**, handles the lowest original civil suits and petty crime as JM-I or JM-II.
- The **CrPC, 1973** separated **judicial** magistrates from **executive** magistrates, in line with **Art. 50**.
- Executive magistrates, such as the DM or SDM, handle only **preventive** and law-and-order work, not regular trials.
- On the civil side, an appeal moves from Junior Civil Judge to Senior/District Judge to the High Court and then the Supreme Court.
- On the criminal side, an appeal moves from a Judicial Magistrate to the Sessions Court to the High Court and then the Supreme Court, with **Art. 136** always available.

Family Courts Act, 1984

- A Family Court is set up by the **State Government**, in consultation with the **High Court**.
- Every district with a population (जनसंख्या) of **1 million or more** *shall* have a Family Court; others *may* have one.
- A Family Court handles marriage, divorce, custody, maintenance, and property disputes between spouses.
- It must attempt **conciliation first**, before a regular trial.
- It is **not bound** by the strict procedure of the CPC, and counsellors sit with the judge.
- Its judge holds the rank of a **District Judge** or equivalent.

All-India Judicial Service (Art. 312)

- The **42nd Amendment** inserted the phrase "including an **all-India judicial service**" into **Art. 312**.
- Creating this service needs a **Rajya Sabha resolution** passed by **2/3 of members present and voting**, followed by a **Parliament law**.
- That Parliament law **may amend Chapter VI of Part VI**, and this is **not** treated as a constitutional amendment under Art. 368.
- The service **cannot** include any post **inferior to district judge** (312(3), read with Art. 236).
- The AIJS has **not been created till date**.

- The **1st and 14th Law Commission Reports** had recommended it.
- *All India Judges' Association* (1992) directed the Centre to consider creating it.
- A **1993 review** left the timing of its creation to the executive's discretion.

Tribunals — Part XIVA (Arts. 323A–323B)

42nd Amendment, 1976 inserted **Part XIVA**. (2023 trap: Tribunals ≠ **Part XI**. XI = Union–State relations.)

Why tribunals: specialised, faster, take load off HCs. They are **not** a parallel Supreme Court.

	Art. 323A	Art. 323B
Subject	**Administrative** tribunals — Union / State **public services**	**Other** tribunals
Who may legislate	**Only Parliament**	**Parliament or a State legislature** (for matters in its list)
Coverage	Service matters of persons appointed to Union/State public services and posts	**Full 323B list:** levy/collection/enforcement of any **tax**; foreign exchange / import-export; **industrial and labour**; **land reforms**; urban (नगरीय) ceiling; **elections to the legislature** (not President/VP/MP election-petitions under 71/329); production/supply of **foodstuffs** and other essential goods; rent/tenancy of urban property; and connected offences
Text on courts	May exclude **all courts except the SC**	Same in the text
After *L. Chandra Kumar*	Exclusion of **HC (226/227) is void**. Tribunal = **court of first instance** → HC **Division Bench** → SC	Same logic

Three separate tribunal stories — do not merge them in revision.

Track	Question	Cases / law
A. Can the HC be skipped?	Does the tribunal **replace** the HC in the hierarchy, or only sit **below** it?	*Sampath Kumar* → *L. Chandra Kumar*
B. Who sits on the tribunal?	Must members be judges, and must **judicial members** form the majority?	*Madras Bar Association* I / II / III
C. How are members appointed?	Can Parliament fix a **4-year term**, control search committees, etc.?	**Tribunals Reforms Act, 2021** — partly struck in MBA-III

Track A — substitute vs supplement (appeal path, not vocabulary)

- **"Substitute"** (*S.P. Sampath Kumar*, **1987**): Parliament may set up the **CAT** as an **effective substitute** for the High Court in **service matters**.
- Under that design, the statutory "exclude all courts except the SC" clause was read to mean: **Tribunal → Supreme Court (SLP)** — the **HC was bypassed**.
- **"Supplement"** (*L. Chandra Kumar*, **1997**): the Court **overruled** the substitute theory.
- A tribunal is only a **court of first instance**; it **supplements** the ordinary judiciary by taking specialised cases **at the bottom** of the ladder — it does **not** replace HC supervision.
- **HC writ/supervisory jurisdiction (Arts. 226/227) over tribunals is part of the basic structure** and cannot be ousted by Part XIVA text or tribunal law.
- **Current appeal ladder:** Tribunal order → challenge before **HC (Division Bench, 226/227)** → **SC** (SLP/appeal). The old **Tribunal-only-then-SC** shortcut is **dead after 1997**.

Track B — composition (*Madras Bar Association*)

- ***Madras Bar Association v. Union of India* (2014):** NCLT/NCLAT must have **adequate judicial representation**; technical/administrative members cannot dominate.
- ***Madras Bar Association v. Union of India* (2020):** struck parts of the **Tribunal Reforms (Rationalisation and Conditions of Service) Ordinance / Act, 2020** on similar independence grounds.
- ***Madras Bar Association v. Union of India* (2021):** reviewed the **Tribunals Reforms Act, 2021** — see Track C.

Track C — Tribunals Reforms Act, 2021 (statutory reforms, not the Sampath/Chandra Kumar pair)

- The Act tried to unify tribunal appointments, impose a **4-year term** (renewable), and reshape search-cum-selection committees.
- In **MBA-III (2021)**, the SC **struck down / read down** several clauses (including the rigid **4-year tenure** and executive-heavy appointment design) as damaging **tribunal independence**.
- **Key fact:** constitutional position = *L. Chandra Kumar*; composition = *Madras Bar* line; **2021 Act is not the last word** — always pair the Act with **MBA-III**.

CAT / SAT / JAT (Administrative Tribunals Act, 1985)

- The **CAT** became functional on **1 November 1985**, with its Principal Bench at **New Delhi**.
- It started with **5** benches and has grown to around **19**, plus circuit benches.
- The CAT covers the **All-India Services**, Union civil services, civil posts under the Union, and specifically **notified** organisations.
- The CAT does **not** cover the **armed forces**, officers and servants of the **Supreme Court**, or the **secretarial staff of Parliament** (and, for a SAT, the analogous State-legislature staff).
- A **SAT** is set up by the Central Government **on a State's request**.
- Its Chairman and members are appointed by the **President**, after consulting the **Governor** of that State.
- A **JAT** is a single tribunal shared by **two or more** States.
- The composition of these tribunals is a **Chairman** (who is or has been a High Court judge), along with judicial members and administrative members.

- The current appeal path runs from CAT/SAT to the **High Court (Arts. 226/227)** and then to the Supreme Court.
- A direct "**only SLP**" path to the Supreme Court, bypassing the HC, was the **pre-1997** design before *L. Chandra Kumar*.

Other tribunals (year / parent Act — match)

- **ITAT (Income Tax):1941** — oldest; 323B tax.
- **CAT:** Administrative Tribunals Act **1985** (323A).
- **NGT:National Green Tribunal Act, 2010**. Principal Bench **Delhi**; others Pune (पुणे), Bhopal, Chennai, Kolkata. Chairperson = SC/HC judge.
- **AFT:Armed Forces Tribunal Act, 2007** — the reason CAT **excludes** armed forces. Appeal to SC.
- **NCLT / NCLAT:** Companies Act; NCLT from **2016**. Company law + IBC.
- **DRT / DRAT:** Recovery of Debts (banks/FIs), **1993**.
- **SAT (SEBI):** Securities Appellate Tribunal — capital markets (do **not** mix with State Administrative Tribunal).
- **NCDRC:** consumer — National Commission (not a 323A body).

PYQ — UPPCS Prelims 2023, Q1

Which among the following (Provision — Part of the Constitution) is **not** correctly matched?

A. The Union Territories — Part VIII B. The Scheduled and Tribal (आदिवासी) Areas — Part X C. Tribunals — Part XI D. Official Language — Part XVII

Show answer

Ans: C. Tribunals = **Part XIVA**. Part XI = relations between the Union and the States.

PYQ — UPPCS Prelims 2020, Q102

Which one of the following pairs is NOT correctly matched?

A. Interstate Council – Article 263 B. Finance Commission (वित्त आयोग) – Article 280 C. Administrative Tribunal – Article 323A D. Union Public Service Commission (संघ लोक सेवा आयोग) – Article 315

Show answer

Fact: C is correctly matched (323A = administrative tribunals). All four pairs are in fact correctly matched; learn **323A / 323B** from this question.

Legal aid, Lok Adalat, Gram Nyayalaya, Fast Track Courts

Art. 39A (42nd, 1976): equal justice and **free legal aid**. Statute: **Legal Services Authorities Act, 1987** (came into force **9 Nov 1995** = **National Legal Services Day**).

- **NALSA:** Patron-in-Chief **CJI**. Executive Chairman: a serving SC judge nominated by the CJI.
- **State Legal Services Authority:** Patron **HC CJ**. Executive Chairman: a serving HC judge.

- **District Legal Services Authority:District Judge** as Chairman.
- **Taluk Legal Services Committee:** senior-most judicial officer in the taluk.

Who gets free legal aid (1987 Act — typical list): women and children · SC/ST · industrial workmen · victims of disaster / trafficking / mass disaster · persons in custody · persons with disability · persons with income below the notified ceiling.

Lok Adalat vs Permanent Lok Adalat

	Lok Adalat	Permanent Lok Adalat (2002, Ch. VIA)
First (independent India)	**Gujarat, 1982** (statutory only from 1987)	Statutory from the **2002** amendment
Cases	**Pending** in a court **and** pre-litigation	**Pre-litigation only**
Subject	Civil + **compoundable** criminal	**Public utility services** only: transport, posts, telegraph, power/water, sanitation, hospitals, insurance, education…
Pecuniary cap	**None**	**₹1 crore**
If no settlement	Returned to the court — **cannot** impose a decision	**May decide on merits**
Award	**= civil-court decree. Final. No appeal.** (226 still open)	Same
Bench	Sitting/retired judicial officer + 2 others	Chairperson (**qualified to be a DJ**) + 2 persons with public-utility experience
Court fee	**Refunded** on settlement	Pre-litigation — no court fee in the same sense

Types of Lok Adalat (names): National · State · District · Taluk · Permanent · Mega / National Lok Adalat days · Mobile.

> **Logic:** Regular Lok Adalat = **compromise only**. PLA = the one forum that can **adjudicate**. Do not mix **SAT (SEBI)** with **SAT (State Administrative Tribunal)** or with Lok Adalat.

Gram Nyayalaya (Gram Nyayalayas Act, 2008)

A **court** at the intermediate-Panchayat HQ — **not** a Gram Panchayat / Nyaya (न्याय) Panchayat.

- The Gram Nyayalaya idea came from the Law Commission's **114th Report**, aimed at justice at the doorstep under **Art. 39A**.
- The **Gram Nyayalayas Act, 2008** came into force on **2 October 2009**.
- Its seat is the headquarters of the **intermediate Panchayat**, or a group of contiguous Gram Panchayats.
- It also holds **mobile** sittings in villages.

- Its judge, called the **Nyayadhikari**, holds the rank of a **Judicial Magistrate 1st Class** or **Civil Judge (Junior Division)**.
- The Nyayadhikari is appointed by the **State Government**, in consultation with the **High Court**.
- A Gram Nyayalaya handles both **civil** cases (First Schedule) and **criminal** cases (Second Schedule), of a petty or specified kind.
- It must attempt **conciliation first**.
- It is **not bound** by the Indian Evidence Act or the strict CPC/CrPC procedure, and is instead guided by **natural justice** and summary procedure.
- Only **one appeal** is allowed: a civil case goes to the **District Court**, and a criminal case to the **Sessions Court**.
- A Gram Nyayalaya is **not** the same as a Gram Panchayat or a Nyaya Panchayat — it is a proper **court**.

Fast Track Courts

- Fast Track Courts originated from a recommendation of the **11th Finance Commission (2000)**.
- Around **1,734** such courts were sanctioned to clear long-pending **sessions** cases and undertrial backlogs.
- Fast Track Courts are **not** a constitutional creation.
- Their judges are usually **additional district or sessions judges** appointed under the scheme.
- Several States have **continued** these courts even after the Finance Commission funding period ended.
- Later, dedicated **Fast Track Special Courts (FTSCs)** were set up from **2019** for **rape and POCSO (पॉक्सो)** cases, funded through the Department of Justice and the Nirbhaya Fund.

Contempt of Court

Inherent in courts of record (**129 / 215**); the 1971 Act only **regulates**.

- The Supreme Court's power to punish for contempt of itself under **Art. 129**, and a High Court's under **Art. 215**, is **inherent** in their status as courts of record.
- Parliament may **regulate** this power (under Entry 77 of List I / Entry 14 of List III), but **cannot take the power away**.
- The **Contempt of Courts Act, 1971** replaced the earlier 1952 Act.
- The 1971 Act was based on the recommendations of the **Sanyal Committee (1961)**, chaired by H.N. Sanyal, then Additional Solicitor General.
- **Civil contempt** means the wilful **disobedience** of a judgment, decree, order, or undertaking given to a court.
- **Criminal contempt** covers any publication or act that **scandalises** the court, **prejudices** a pending proceeding, or **interferes** with the administration of justice.
- Under **section 12**, the punishment is simple imprisonment up to **6 months**, or a fine up to **₹2,000**, or both.
- An honest **apology** may purge the contempt and avoid punishment.

- Under **section 20**, no contempt proceeding can be started after **one year** from the date of the alleged act.
- Under **section 15**, a court may take cognizance of criminal contempt **suo motu**.
- It may also act on a motion by the Attorney General or Solicitor General (for the Supreme Court) or the Advocate General (महाधिवक्ता) (for a High Court).
- It may also act on a motion by any other person, but only **with the written consent** of that law officer.
- **Suo motu** cognizance needs **no** such consent.
- The **2006 Amendment** made **truth** a valid defence, if it is in the **public interest** and stated in good faith.
- Other recognised defences include innocent publication or distribution, a fair and accurate report of an already **decided** case, fair criticism of a judicial act, and a good-faith complaint to a superior.
- **Art. 19(2)** lists **contempt of court** as one of the permitted restrictions on the freedom of speech under Art. 19(1)(a).
- A **High Court** punishes contempt of the courts subordinate to it.
- A subordinate court **cannot** try its own contempt case — it must **refer** the matter to the High Court.
- In ***Supreme Court Bar Association*** **(1998)**, the Court held it **cannot**, while punishing contempt, **suspend an advocate's licence** to practise.
- That disciplinary power belongs only to the **Bar Council**; the Supreme Court's own power is limited to punishment under Arts. 129/142.

> **Logic:** 1971 Act is a **ceiling for HCs**; SC's 129 power is **constitutional** and not confined by the Act, but the Act is used as a **guide**.

ADR (basic)

S. 89 CPC (after 1999/2002 amendments): where it appears that there exist elements of a settlement, the court **shall** formulate terms and **may refer** the parties to one of five:

1. **Arbitration**
2. **Conciliation**
3. **Judicial settlement** including **Lok Adalat**
4. **Mediation**
5. (the fifth limb is judicial settlement / Lok Adalat as above — treat **five names** as: arbitration, conciliation, mediation, judicial settlement, Lok Adalat)

- In **negotiation**, the parties themselves reach an agreement, which binds them only once they sign it.
- In **mediation**, a neutral third party **facilitates** a settlement but does **not** impose one; the **Mediation Act, 2023** now gives such a settlement agreement statutory force.
- In **conciliation**, the neutral third party **may suggest** terms of settlement, under Part III (मौलिक अधिकार) of the **1996 Act**; the resulting settlement agreement has the same status as an arbitral award on agreed terms.

- In **arbitration**, the arbitrator actually **adjudicates** the dispute.
- The resulting **arbitral award** has the force of a court **decree**, under the **Arbitration and Conciliation Act, 1996** (based on the UNCITRAL model), as amended in 2015, 2019 and 2021.
- A regular **Lok Adalat** works only by **compromise**; a **Permanent Lok Adalat** can decide on **merits**. Either way, the result is a decree with **no appeal**.
- In **judicial settlement**, a judge acts as the settler, and the settlement takes the form of a court order.

Other facts: The **Commercial Courts Act, 2015** made **pre-institution mediation** compulsory for specified commercial suits. The **Mediation Act, 2023** enables online and court-annexed mediation. The constitutional hook for all of ADR remains **Art. 39A**.

> **Logic:** Arbitration is **adjudicatory**. Mediation / conciliation / regular Lok Adalat are **consensual**. **PLA** is the hybrid that can decide merits. **FTC is not ADR** — it is a regular court on a fast track.

Mains link (one frame)

- Collegium vs NJAC is the live tension: **independence** versus **accountability**. PIL + Art. **142** is why the SC is a constitutional court of residual reach, not a mere court of appeal — and why **restraint** is the answering doctrine when activism slides into overreach. *L. Chandra Kumar* is the subordinate-judiciary twin of *Kesavananda*: **226/227 cannot be ousted** even when Part XIVA text says they can. **39A → NALSA / Lok Adalat / Gram Nyayalaya** is the access-to-justice half of the same story.